

Chapter Four:

The FDRE Constitution: Overview, Principles and policy Objectives

- 4.1 Overview and Salient features of the FDRE Constitution
- 4.2 Fundamental principles of the FDRE constitution
- 4.3 Policy objectives under the FDRE Constitution

Overview and Salient features of the FDRE Constitution

Situated in the Horn of Africa Ethiopia;

- is a multicultural- hosting more than eighty of what the 1995 constitution calls "nations, nationalities and peoples",
- Multi-religious-
- Its more than 120 million population, making it the second most populous country in Africa next to Nigeria, being Orthodox Christian, forty percent Muslim and the rest belonging to other minor religions.

Overview

- Indeed, this unique patriotism and the two oldest religions: Christian Orthodox and Islam still serve as unifying features cutting across the different ethno-linguistic groups?

Overview

- The long years of independence means that it is a country with its own written **script Geez**, its **number (Kutur)** and own **calendar**.
- Ethiopia is a founding member of the **United Nations**, as it was of the defunct League of Nations, Organization of African Unity and home to and a leading member of the African Union.

Salient/Distinct Features of FDRE Constitution

1. The Explicit Recognition of Nations/Nationalities as Building Bricks of the Federation/Constitution and Its Implications

- One feature one notices throughout the Constitution is the utmost importance given to the ethno-linguistic groups within the Ethiopian polity.
- Unlike many constitutions, the Preamble of the Ethiopian Constitution does not commence with the traditional constitutional formula of “we the people,” but with “We the Nations, Nationalities, and Peoples of Ethiopia” and somewhat vaguely the Constitution grants ethno-linguistic groups a kind of ‘confederate’ position, in the federation.

Cont'd...

- Dealing with the fundamental principle of the constitution, chapter two (Article 8) the text declares,
“All sovereign power resides in the Nations, Nationalities, and Peoples of Ethiopia.”
- The same Constitution grants the nations, nationalities and peoples the right to self-determination.
- It insists that there must be some congruence between the nation, nationality and territory they inhabit. Article 8.

Cont'd...

- A consequence of this is the fact that the Constitution organizes the constituent states on
- “the basis of settlement patterns, language, identity and consent of the people concerned.”
- Practice?

Distinct Features of Ethiopian federalism

- Ethnic communities as a building bricks of the Constitution

Distinct Features ...

- **Justifications:-** Ethnic Federalism

- a. Ethno nationalist Argument- distinctiveness - right

- means to protect

- b. Promote the Value of the Community- degree of political autonomy

- do for their common interest

Distinct Features ...

- **Justifications:-** Ethnic Federalism

c. Promoting equality – all citizens with genuine equality

- giving official recognition for diversity- L,C,R, ...

d. Democratic Argument-mutual interest and cooperation b/n the people

- representative government easy- speak, write .L

- increase public participation

Distinct Features ...

- **Criticisms, Ethnic Federalism**

- i. Reduce National Integration and Political Stability**

Marriage of federalism with Ethnicity:

- Dividing citizens along ethnic lines and institutionalize their division
 - Leaders devote on their political and economic satisfaction
 - Foster political, social, psychological separation

Distinct Features ...

- **Criticisms, Ethnic Federalism**

- ii. Restricts Economic Development

Unsound institutional arrangement

- Restricts mobility of Labor, Goods and Capital across sub national jurisdiction
 - Aggravate inter-jurisdictional disparities in wealth

Political leaders assume they are primarily (if not exclusively) as agents of their own ethnic community

- Cost of reaching Agreement – forum, institution, continuous dialogue

Distinct Features ...

iii. Human Rights

- For ethnic minorities
- Impossible to bring absolute coincide of political and ethnic boundaries

Distinct Features ...

2. Unicameral Legislature

Federations are characterized by bicameral legislature at the federal level

Upper chamber - composed based on the principle of territoriality

Lower Chamber – on population size

- Ethiopian constitution provides only unicameral lawmaking body

Unicameral Legislature

Art. 53, misleading

Articles 55(1)

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States or Ethno nationalist groups , have no say on federal matters, laws

- Reason de'tre in federation- self rule and shared rule principle
- Genuine federations - gives autonomy
 - incorporate states at federal decision making process

3. HOF as an Arbiter of the Constitution

- Ethiopian federal system departs from this trend and grants the HoF among other things with the power to interpret the Constitution, resolution of disputes among the regions, decide on intergovernmental subsidies and joint taxes.

Distinct Features ...

3. HOF as an Arbiter of the Constitution

- Secondly, in historic Ethiopia, adjudication of cases formed part and parcel of public administration.
- One finds a merger of functions within the executive, administration of justice and executive function proper.
- Indeed adjudication of cases was considered to be the principal function of the executive.

4. Self Determination including and up to Secession

- Self determination- was a political concept
- Following WWII, self determination as a legal concept emerged

Self Determination – Internal

– External

Internal self determination- the right of the people to establish their own government without any interference by another people or state

External Self determination- the right of the people to determine their own roles and status at the international arena – UN charter, Art. 1

– ICCPR, ICESCR, art. 1

Article 39?

SECESSION

- A legal right or kiss of death?
- Prohibition – USA, Spain, Mexico, Brazil
- Allow – Ethiopia, Sudan
- Political reality – Malaysia / Singapore, Indian /Pakistan, Yugoslavia, Czech republic / Slovakia, Indonesia / East Timor, Ethiopia / Eritrea
- Next: Belgium?
- Does federalism encourage it, allow it or manage it?

Distinct Features ...

Federalism and Secession

- Highly contested provision
- Article 39, - self determination,
 - Right to nationalities to secede – not suspended during state of emergency

Three Views

1. Secession is not a constitutional right and it can only cause regime instability – one people, one country and indispensable territory
2. Only self determination short of secession should be enshrined in the constitution
3. Secession as part of the collective right of Nationalities , no reason to deny if the terms of the compact is violated.

Requirements?

Some of the contending Views of the Federal System

- Federal system- national consensus
 - another option
- The only viable and reasonable option

Four contending perspectives of the federation:

1. The first group of scholars consider ethnic federalism as a sign of the first mark of disintegration
 - Give ethnic groups so much power
 - Placing integration of the federation at risk
 - politics of differences and subsequent threat of fragmentation

Some of the contending Views...

But – not endemic to Ethiopia

- multicultural/ethnic communities

Whether the federal system will consolidate unity in diversity or fragment the different groups **depends on several other factors**

- Practical reality – stratification?
 - marginalization?

Some of the contending Views...

The second group

- **The paradox between generously granted constitutional powers and centralized federal systems in practice resulted from:**
 - Centralized policy making process and
 - Dominant ruling party
- The autonomy of states is limited in practice
- Party structure overshadows institutions
- It is not federal enough as promised

Positive side – disciplined party in multi cultural society

Negative side – exceeds its limit

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Some of the contending Views...

3. The present federal system is the only panacea to country's political question – remedy for national question

- remedy to cure

4. On restructuring the constituent units?

Final point of contest – academicians and practitioners is how best to restructure the constituent states?

Ethnic or Ethnic Free (Territorial)?

4.2 Fundamental principles of the FDRE constitution

- The Constitution of the Federal Democratic Republic of Ethiopia (FDRE) provides for basic

principles to which it is committed.

These principles include:

- The rule of law
- Respect for individual and peoples' fundamental freedoms and rights
- Equality/Non-discrimination
- Citizens' Participation in the political, social, and economic life of the country
- Economic freedom
- Regular, free and fair elections
- Accountability of government and its elected officials
- Transparency in the conduct of public affairs
- Control of the abuse of power

4.2 Fundamental principles of the FDRE constitution

- Constitutions and fundamental principles
- Different or similar?

a. Sovereignty of the people, Article 8(1-3)

b. Supremacy of the Constitution,
Why?

Article 9(1-4), 9(4) vs 13(2)

c. Ratified HR Treaties vs the Constitution

d. Human and democratic rights, classification of rights? The difference?

e. Separation of State and Religion, why? Extent of separation? Arts. 11&27

Thomas Madison

f. Transparency and Accountability of Government, Arts. 12,54(4,7),29(2-5)55(17,18),
79(4)

Mass media proclamation 590/2009

4.3 Policy objectives under the FDRE Constitution

Not most common in modern constitutions

Articles from 85-92

Justiciable or non-justiciable?

- **Article 85: Objectives**

Principles or objectives? How could be used by the government in the day to day activities?

- **Article 86: Principles for External Relations**
- **Article 87: Principles for National Defence**
- **Article 88: Political Objectives**
- **Article 89: Economic Objectives**
- **Article 90: Social Objectives**